

		not “reasonably necessary to the conduct of the litigation,” they are—as stated in their name—“merely convenient” to Plaintiff’s preferred method of payment. (Code Civ. Proc., § 1033.5, subd. (c)(2) [“Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation”].) The remainder of the motion is denied because, based on the allegations in the Complaint, it is reasonable to expect Plaintiff to depose the individuals who worked on the repairs of the subject vehicle, and allegedly were not able to repair it. (See Compl. at ¶ 12 [“On each occasion Plaintiff delivered the Subject Vehicle for repair to Defendant or its authorized repair facility(s), the vehicle was returned to Plaintiff without properly repairing the nonconformity(s)”].) Accordingly, Plaintiff should be able to recover the (stated) costs of \$3,669.48 for “deposition costs” and \$598.40 for “service of process.” In sum, as stated above (in connection with the fee motion), Plaintiff is entitled to recover \$6,826.60 in costs and expenses. Plaintiff shall give notice of the rulings. Order to Show Cause re: Dismissal on Settled Case Continued to 8/31/26 at 9:00 a.m.
4	Chacko vs. Frith Earson 2023-01362003	Motion for Leave to Allow Independent Medical Examination Motion for Protective Order Defendants Brandon Todd Frith Earsom’s and Cunningham-Davis Corp.’s motion for leave to conduct an additional independent medical examination of Plaintiff Sheba Chacko is granted. The defendant has an unqualified right to demand one physical examination in a suit for personal injuries. (<i>Pratt v. Union Pacific R. Co.</i> (2008) 168 Cal. App. 4th 165, 181; Code Civ. Proc. § 2032.220(a).) In order to conduct a second physical examination, leave of court is required. Good cause must be shown. (Code Civ. Proc., §§ 2032.310, 2032.320.)

		Here, Plaintiff previously underwent a neurosurgical independent medical examination with Dr. Paul Kaloostian on 9/25/24. Defendants state that Plaintiff's cervical and lumbar spine were evaluated, but her TMJ complaints were not. (He Decl. ¶ 5). Since that time, in November 2025, Plaintiff received a surgical recommendation for a C5-6 total disc arthroplasty. (He Decl. ¶ 6, Ex.1). Plaintiff has designated an orthopedic surgeon, Dr. Jeremy Scott Smith, as an expert, while Defendants currently have no orthopedic surgeon designated (He Decl. ¶ 7). Given the evidence that Plaintiff's condition has progressed, the Court finds that there is good cause to allow an additional 60-90 minute independent medical examination of Plaintiff by Defendant's expert Dr. Kahmann under the parameters set forth in Defendant's motion. In addition to the TMJ complaints that were not previously evaluated, Defendants' expert shall be permitted to examine Plaintiffs' cervical and lumbar spine in order to evaluate her progressing condition and the recommendation for surgery. Plaintiff's motion for a protective order prohibiting Defendant from conducting any additional independent medical examinations of Plaintiff's cervical spine and lumbar spine is accordingly denied as moot based on the above. Defendants shall give notice.
5	Costa vs. FCA US, LLC. 2025-01460593	Motion to Compel Production Plaintiffs Conrad Costa and Monique Costa's Motion to Compel Initial Disclosures Pursuant to CCP § 871.26 and Request for Monetary Sanctions is denied. Plaintiffs move under CCP section 871.26 for an order compelling Defendant to produce all documents required under subdivisions (h)(6) through (h)(10), (h)(12), and (h)(13), and for \$2,500 in monetary sanctions against Defendant and its counsel of record. The Court denies the motion for two reasons. First, CCP section 871.26 does not provide any authority for a motion to compel production for a violation of the statute. In enacting the statute, the Legislature sought to curb discovery motions, not to provide an additional basis for discovery disputes. (See California Bill Analysis, A.B. 1755 Assem., 8/30/2024 ["this bill adopts a set of